

25STCV000340 25STCV000340

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Case Number: 25STCV000340 Hearing Date: August 11, 2026 Dept: 514

Taghiof v. Levi

25STCV000340

Plaintiff's Motion to Compel Defendant Daniel S. Levi to Provide Further Responses to Form Interrogatories (Set One)

Plaintiff's Motion to Compel Defendant Daniel S. Levi to Provide Further Responses to Special Interrogatories (Set One)

Plaintiff's Motion to Compel Defendant Daniel S. Levi to Provide Further Responses to Requests for Production (Set One)

Tentative Ruling

The motions are denied. The requests for sanctions are denied.

Background

This case arises out of a motor vehicle accident on October 23, 2023, on the 405 Freeway just south of National Boulevard in Los Angeles.

On January 7, 2025, Claire Jaleh Taghiof ("Plaintiff") filed the complaint in this action.

On March 15, 2025, Daniel S. Levi and Jennifer Levi filed an answer.

On December 23, 2025, the Court denied, as moot, Plaintiff's motion to compel further responses to Form Interrogatories (Set One), Special Interrogatories (Set One), and Request for Production of Documents (Set One), as further responses had been served while the motions were pending.

On May 19, 2026, Plaintiff filed three discovery motions: (1) Motion to Compel Defendant Daniel S. Levi ("Defendant") to Provide Further Responses to Form Interrogatories (Set One); (2) Motion to Compel Defendant to Provide Further Responses to Special Interrogatories (Set One); and (3) Motion to Compel Defendant to Provide Further Responses to Requests for Production (Set One). The motions were noticed for hearing on June 18.

On June 5, Defendant filed oppositions to the motions relating to the special interrogatories and requests for production.

On June 11, Plaintiff filed a reply to those two oppositions and a notice that Defendant had not opposed the motion relating to the form interrogatories.

On June 18, the Court continued the hearing on these motions.

On July 1, Defendant filed an opposition to the motion relating to the form interrogatories.

On July 7, Plaintiff filed a reply to that opposition.

Trial is set for April 19, 2027.

Legal Standard

"On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required

specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general.”
(Code Civ. Proc., § 2030.300, subd. (a).)

Notice of a motion to compel further responses must be given
“within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing.” (Id., subd. (c).)

A motion to compel further responses must be accompanied by a meet-and-confer declaration and a separate statement or, in the discretion of the Court, a “concise outline of the discovery request and each response in dispute.” (Id., subd. (b)(1) & (b)(2); Cal. Rules of Court, rule 3.1345.)

“The court shall
impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310, subd. (a).)

Notice of a motion to compel further responses must be given
“within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing.” (Id., subd. (c).)

A motion to compel further responses must set forth specific facts showing good cause for the discovery and must be accompanied by a meet-and-confer declaration and a separate statement or, in the discretion of the Court, a

“concise outline of the discovery request and each response in dispute.” (Id., subd. (b)(1)-(3); Cal. Rules of Court, rule 3.1345.)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

In Chapter 7 of the Civil Discovery Act, Code of Civil Procedure section 2023.030, subdivision (a) provides, in pertinent part, that the court may impose a monetary sanction ordering that any person “engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” A “misuse of the discovery process” includes (among other things) failing to respond or to submit to an authorized method of discovery; making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to a discovery request; disobeying a court order to provide discovery; and making or opposing, unsuccessfully, a motion to compel without substantial justification. (Code Civ. Proc., § 2023.010, subds. (d)-(h).)

Discussion

A party moving to compel further responses to interrogatories or requests for production must file, with the motion, a declaration establishing that the moving party has satisfied the statutory requirement to meet and confer as set forth in Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2030.300, subd. (b)(1) & § 2031.3010, subd. (b)(2).)

Code of Civil

Procedure section 2016.040, as amended by the Legislature effective January 1, 2026, provides:

“A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”

(Code Civ.
Proc., § 2016.040, subd. (a).)

Plaintiff has
not satisfied this requirement. To the
contrary, Plaintiff's only attempt to meet and confer following service of the
supplemental responses at issue in March 2026 was a single email. (Mooshekh Decls., ¶¶ 16-18 & Exhs. 1.8,
2.8, 3.8.)

On that basis,
the Court must deny all three motions.
The Court need not reach, and does not reach, the other arguments
presented by the parties.

The motions to
compel are denied.

As Plaintiff's
motion is denied, so is her request for sanctions.

The Court denies
Defendant's request for sanctions.
Although Plaintiff has brought an unsuccessful motion to compel, the
Court finds that under all of the circumstances, the imposition of sanctions
against Plaintiff and her counsel would be unjust.

Conclusion

The Court DENIES
the motion of Plaintiff Claire Jaleh Taghiof to compel Defendant Daniel Levi to
provide further responses to Form Interrogatories (Set One).

The Court DENIES
the motion of Plaintiff Claire Jaleh Taghiof to compel Defendant Daniel Levi to
provide further responses to Special Interrogatories (Set One).

The Court DENIES
the motion of Plaintiff Claire Jaleh Taghiof to compel Defendant Daniel Levi to
provide further responses to Requests for Productions (Set One).

The Court DENIES
both parties' requests for sanctions.

Moving party is
ordered to give notice.